Introduction to IT-Law

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What is IT law?

- Information technology law is about the legal framework governing information technology, digital transformation, the Internet
- IT law does not constitute an area of law in itself, different legal fields deal with IT issues … since IT is part of many areas of life.

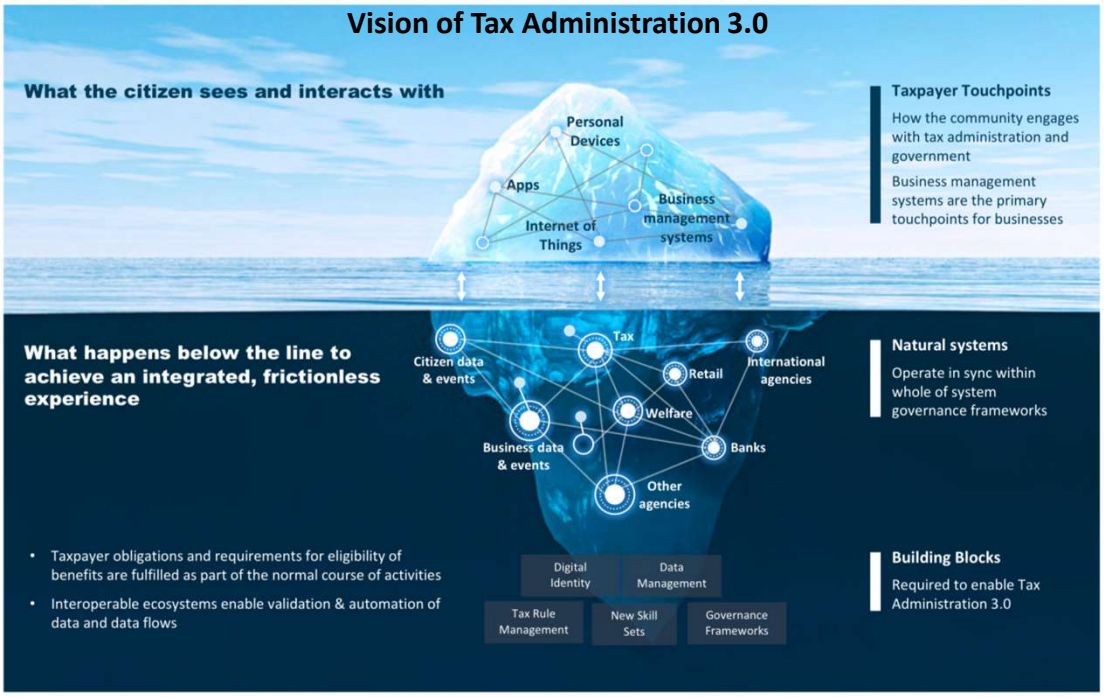
At the beginning there were meant to be no rules ….

https://www.eff.org/cyberspace-independence

Nowadays ….

- General Data Protection Regulation
- AI Act
- E-Commerce Law
- NIS Directive
- Anti-Money Laundering Directive ….

https://single-market-economy.ec.europa.eu/industry/strategy/digital-transformation_en



What is Law?

- Rules adopted by
  - The European legislative body
  - The national parliaments
  - To a certain extent by national governments

→To coordinate the relationship between the State and its citizens
→To coordinate the relationship among citizens
→To frame citizens´behaviour where there is a risk to harm others

Basic principles of liberal democracies

- The individual is born free
- Law must treat all individuals equally, unless discrimination is justified by an overriding reason in the public interest
- Any individual is free
  - To exercise their religion
  - To express their opinions, thoughts, beliefs
  - To exerce any professional activity
  - To assemble
  - Has the right to private property
  - Has the right to respect of his private and family life
  - …..

  → Freedoms can be restricted by LAW for an overriding reason in the public interest .. as far as rectriction is proportionate to the aim pursued.

Basic principles of liberal democracies

- The State can only act upon entitlement by LAW
- Separation of powers to avoid abuse of power
  - Legislation
  - Executive
  - Judiciary
- Within the European Union certain competences of the nation State have been transferred to the European Union
  - a supranational entity
  - with legislative, judicial and executive powers in certain areas

Hierarchy of norms

FUNDAMENTAL PRINCIPLES OF LIBERAL DEMOCRACIES - **Rule of Law** - **Separation of powers (judiciary, legislation, executive)**
EUROPEAN LAW - founding treaties of the European Union and - European Charter of Fundamental Rights - Secondary EU Law (Regulations and Directives such as GDPR)
NATIONAL CONSTITUTIONAL LAW
NATIONAL "SIMPLE" LAWS
NATIONAL REGULATIONS
NATIONAL STATE ACTS THAT ARE CONTINGENT UPON THE INDIVIDAL

Economic foundations of the European Union

- Law provides the grounding for a certain type of economy
- Law frames economy and tries to mitigate shortcomings of the free play of powers

- The European Union is a social market economy.

Art 3 Treaty of the European Union (1)

1. The Union's aim is to promote peace, its values and the well-being of its peoples.

2. The Union shall offer its citizens an area of freedom, security and justice without internal frontiers, in which the free movement of persons is ensured in conjunction with appropriate measures with respect to external border controls, asylum, immigration and the prevention and combating of crime.

3. The Union shall establish an internal market. It shall work for the sustainable development of Europe based on balanced economic growth and price stability, a highly competitive social market economy, aiming at full employment and social progress, and a high level of protection and improvement of the quality of the environment. It shall promote scientific and technological advance.

It shall combat social exclusion and discrimination, and shall promote social justice and protection, equality between women and men, solidarity between generations and protection of the rights of the child.

It shall promote economic, social and territorial cohesion, and solidarity among Member States.

It shall respect its rich cultural and linguistic diversity, and shall ensure that Europe's cultural heritage is safeguarded and enhanced.

Art 3 Treaty of the European Union (2)

4. The Union shall establish an economic and monetary union whose currency is the euro.

5. In its relations with the wider world, the Union shall uphold and promote its values and interests and contribute to the protection of its citizens. It shall contribute to peace, security, the sustainable development of the Earth, solidarity and mutual respect among peoples, free and fair trade, eradication of poverty and the protection of human rights, in particular the rights of the child, as well as to the strict observance and the development of international law, including respect for the principles of the United Nations Charter.

6. The Union shall pursue its objectives by appropriate means commensurate with the competences which are conferred upon it in the Treaties.

IT – where does it play a role in our societies?

- IT is being developed by private parties and governments
- States deploy IT
- Private parties deploy IT
- Private parties develop IT and sell it to customers

IT – which legal questions can come up?

- **Protection of private and family life**
- **Product safety**
- **Intellectual property rights**
- **Cybercrime**
- **E-Commerce**
- **Electronic identity**
- **Taxation**
- **.....**
- **Specifically related to AI**
  - Compliance with the AI act
  - Limits of automated decision making

Timeline

12.3.2026	Introduction into IT Law	Prof. Tina Ehrke-Rabel
19.3.2026	Data Protection Law and AI Act	Prof. Tina Ehrke-Rabel
16.04.2026	GovTech, Cryptoassets	Prof. Tina Ehrke-Rabel
23.04.2026		Prof. Miernicki
30.04.2026		Prof. Miernicki
07.05.2026		Prof. Miernicki
28.5.2026	Mediation, Judiciary and IT	Dr. Christian Aschauer